

Court No. - 32

Case :- WRIT - C No. - 37203 of 2019

Petitioner :- M/S. Brijesh Extention Pvt. Ltd. And Another

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Vashishtha Tiwari

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Saurabh Shyam Shamshery,J.

Heard learned counsel for the petitioners and Shri.Baleshwar Chaturvedi on behalf of the respondents.

This writ petition has been filed seeking following reliefs:

"(a) Issue a writ order or direction in the nature of certiorari quashing the notice dated 14.6.2019 issued by Respondent No.2 (filed as Annexure No.3 to the writ petition).

(b) Issue a writ order or direction in the nature of mandamus directing the respondents to permit the petitioner to deposit the entire amount as mentioned in notice dated 14.6.2019 in easy installment.

(c) Issue a writ order or direction in the nature of mandamus directing the respondents to permit the petitioner to deposit the amount in pursuance of the office order dated 10.7.2019.

(d) Issue any other writ, order or direction as this Hon'ble Court may deem fit and proper in the circumstances of the case.

(e) Award the cost of the petition to the petitioner."

At the very outset Shri.Baleshwar Chaturvedi learned counsel for the respondents submitted that the petitioners have alternative remedy under Clause 6.1 of the U.P. Electricity Supply Code, 2005 for ventilating their grievances.

Learned counsel for the petitioners has not disputed the aforesaid contention made by the learned counsel for the respondents.

In view of the above, we grant liberty to the petitioners to approach the appropriate authority under Clause 6.1 of the U.P. Electricity Supply Code, 2005. In case, such an application is

filed by the petitioners within a period of 10 days from today, the same shall be considered and appropriate orders be passed in accordance with law within a period of 30 days thereafter. For a period of 40 days from today or till the order is passed by the appropriate authorities, no coercive action shall be taken against the petitioners.

With the aforesaid observations, this writ petition stands **disposed of.**

Order Date:-16.11.2019

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